

24STCV21117 24STCV21117

County: los-angeles

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Department: 406

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Case Number: 24STCV21117 Hearing Date: August 19, 2026 Dept: 406

VICTOR M. MENDOZA,

Plaintiff,

v.

AMERICAN HONDA MOTOR COMPANY, INC.,

Defendant.

Case No.: 24STCV21117

Hearing Date: August 19, 2026

[TENTATIVE]

order RE:

Plaintiff's motion for further responses

to:

(1)

special

interrogatories and

(2)

production

of documents

BACKGROUND

On August 20, 2024, Plaintiff Victor M. Mendoza filed this action against Defendant American Honda Motor Company for violation of the Song-Beverly Act.

Plaintiff filed the instant motions on May 27, 2026. Defendant filed opposition on June 6, 2026. And Plaintiff filed replies on June 12, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).) A party “is entitled to demand answers to its interrogatories, as a matter of right . . . [and] the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Sup. Ct. (2017) 3 Cal.5th 531, 541.)

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).) The party seeking production of documents bears the initial burden of showing good cause through a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Once this showing is made, the burden shifts to the responding party to justify any objections. (Ibid.)

MEET AND CONFER

A motion to compel further must be accompanied by a meet and confer declaration demonstrating an attempt to resolve the matter informally. (Code Civ. Proc., §§ 2030.300(b)(1), 2031.310(b), 2033.290(b).) The Court finds that Plaintiff has satisfied the meet and confer requirement.

DISCUSSION

I.

SPECIAL INTERROGATORIES.

Plaintiff seeks further responses to

Special Interrogatories 13, 15, 17, 19, 21, 23, 25, and 25. These Special Interrogatories concern repurchase of “any vehicles of the same year, make, and model as the SUBJECT VEHICLE.”

The court agrees with Defendant that these

Special Interrogatories seek information that is not relevant and is not likely to lead to the discovery of relevant information. As such, Plaintiff’s motion to compel further responses to special interrogatories is DENIED.

II.

REQUEST FOR PRODUCTION OF DOCUMENTS.

Plaintiff seeks further responses to Request

for Production Nos. 29, 32, 35, 38, 47, 53, 56, 59, and 62. These request concern other Customers’ Complaints or Warranty Claims Alleging Same Defects of Identical Vehicle as Subject Vehicle.

Plaintiff seeks further responses to Request

for Production Nos. 28, 30, 31, 33, 34, 36, 38, 39, 41, 46, 52, 54, 55, 57, 58, 60, 61, 63. These request concern Internal Investigation and Repurchase into Defects in the Subject Vehicle, as well as Other Vehicles of the Same Year, Make, and Model.

The court agrees with Defendant that these

Requests for Production of Document seek information that is not relevant and is not likely to lead to the discovery of relevant information. These requests are also overly broad and unduly burdensome. As such, Plaintiff’s motion to compel further responses to special interrogatories is DENIED in part. If it has not done so already, the court is ordering Defendant produce the following:

1.

Defendant

shall produce the “Warranty Policy and Procedure Manual” published by Defendant and provided to its authorized repair facilities, within the State of

California, from date of purchase to present.

2.

Defendant

shall produce any and all Recall Notices and Technical Service Bulletins concerning the subject vehicle.

Defendant is not required to do a search of emails.

3.

Defendant

shall produce all documents evidencing policies and procedures used to evaluate customer requests for repurchase pursuant to the Song-Beverly Consumer Warranty Act, from date of purchase to present.

4.

Defendant

shall produce all repair orders and invoices concerning the subject vehicle.

5.

Defendant

shall produce all communications with dealer, factory representative and/or call center concerning the subject vehicle.

6.

Defendant

shall produce all warranty claims submitted to and/or approved by Defendant concerning the subject vehicle.

CONCLUSION

Plaintiff's

motion to compel further responses to special interrogatories is DENIED. Plaintiff's motion to compel further responses to request for production is DENIED in part. If Defendant has not done so already,

Defendant shall produce the above-mentioned documents within

20 days of this order. Production shall

be subject to a protective order. Each

side acted with substantial justification, and as such, sanctions are denied.

